EXCLUSIVE TENANT AGENCY CONTRACT

TAC

This form recommended and approved for, but not restricted to use by, the members of the Pennsylvania Association of Realtors® (PAR).

A tenant agent owes duties of loyalty and confidentiality to a tenant and must act in a tenant's best interests. If a consumer chooses to rent property without hiring a tenant agent, that consumer will not have a real estate licensee looking out for their interests in the transaction.

In an exclusive tenant agency contract, you agree that you will work with only one tenant agent for a certain time period and that you could owe a broker's fee to this broker if you rent a property during the contract time period. Contacting another tenant agent and using their services during the term of this contract could mean that you might owe fees to more than one broker.

Do not sign this contract until you have read the entire document and discussed any questions with the agent. If you have further questions about this contract you can also discuss them with the agent's broker or manager, and if you have legal questions, you are advised to consult a Pennsylvania real estate attorney.

Broker (Company) _____ | Licensee(s) (Name) _____

Company License # _____ | State License # _____

Company Address _____ | Direct Phone(s) _____

Cell Phone(s) _____

Company Phone _____ | Licensee Fax _____

Company Fax _____ | Email _____

TENANT _____

TENANT'S MAILING ADDRESS _____

PHONE _____ **CELL** _____

E-MAIL _____ **FAX** _____

Tenant understands that this Exclusive Tenant Agency Contract is between Broker and Tenant.

Does Tenant have a written agreement, such as a tenant agency contract, with another Broker? ☐ **Yes** ☐ **No**

If yes, explain: _____

1. STARTING & ENDING DATES OF EXCLUSIVE TENANT AGENCY CONTRACT (ALSO CALLED "TERM")

(A) **No law or Association of REALTORS® has set or recommended the term of this Contract.** Broker/Licensee and Tenant have discussed and agreed upon the length or term of this Contract.

(B) **This Contract applies to any property that Tenant chooses to rent during the term of this Contract. Tenant will not enter into a Tenant Agency Contract with another broker/licensee that begins before the Ending Date of this Contract.**
Starting Date: This Contract starts when signed by Tenant and Broker, unless otherwise stated here: _____
Ending Date: This Contract ends at 11:59 PM on _____, or before if Tenant and Broker agree. The Ending Date of this Contract may not be extended without the written consent of Tenant.

(C) If Tenant is negotiating or has entered into a Lease, this Contract ends upon execution.

2. BROKER'S FEE

(A) **No law or Association of REALTORS® has set or recommended Broker's fee.** Broker and Tenant have negotiated the fee Broker will receive for exercising professional knowledge and skills in locating and assisting Tenant in the acquisition of real property which is available and suitable for Tenant.

(B) Broker's Fee, paid by Tenant to Broker, is as follows (select all that apply):

1. ☐ _____ of total rent owed to Landlord
   ☐ _____ of _____ month's rent owed to Landlord
   ☐ _____ as a flat fee
2. Advance Fee/Retainer: $ _____ of Broker's Fee is earned and due (non-refundable) at signing of this Contract. This Advance Fee will be credited against any other fees stated in this paragraph unless otherwise stated here: _____
3. Other: _____
4. **Broker will not retain any amount greater than the Broker's Fee agreed to in Paragraph 2(B), from any source.**

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rev. 8/24; rel. 8/24

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(C) Even though Broker's Fee, or a portion of it, may be paid by a landlord or a listing broker, Broker will continue to represent the interests of Tenant.
1. It is Broker's policy to accept compensation offered by the listing broker, called cooperating compensation. If a listing broker offers cooperating compensation that is less than the Broker's Fee agreed to in Paragraph 2(B), Tenant may authorize Broker to negotiate an increase by using a form such as the Cooperating Broker Compensation Agreement for Rentals form [PAR Form CBCR].

(D) Tenant understands and agrees that if Broker receives LESS than the Broker's Fee agreed to in Paragraph 2(B), TENANT WILL BE RESPONSIBLE FOR PAYING THE REMAINDER OF BROKER'S FEE DUE TO BROKER AT OR BEFORE EXECUTION.

(E) **The balance of Broker's Fee is earned if Tenant enters into a lease during the term of this Contract, whether brought about by Broker, Broker's Licensee(s) or by any other person, including Tenant. If Tenant defaults on the terms of a lease, Broker's Fee will be paid by Tenant to Broker at that time. Tenant is advised that contacting a listing broker or landlord directly may compromise Broker's ability to earn cooperating compensation from a listing broker and could result in Tenant's obligation to pay a fee to Broker.**

(F) If Tenant enters into a lease for a property after the Ending Date of this Contract, Tenant will pay Broker's Fee if:
1. The lease is a result of Broker's actions during the term of this Contract, OR
2. The property was seen during the term of this Contract, AND
3. Tenant is not under an exclusive tenant agency contract with another broker at the time Tenant enters into a lease.

3. DUAL AGENCY

Tenant agrees that Broker and Broker's Licensee(s) stated above may also represent the landlord(s) of the property Tenant might buy. A Broker is a Dual Agent when a Broker represents both Tenant and a landlord in the same transaction. A Licensee is a Dual Agent when a Licensee represents Tenant and a landlord in the same transaction. All of Broker's licensees are also Dual Agents UNLESS there are separate Designated Agents for Tenant and a landlord. If the same Licensee is designated for Tenant and a landlord, the Licensee is a Dual Agent. Tenant understands that Broker is a Dual Agent when Tenant is viewing properties listed by Broker.

4. DESIGNATED AGENCY

Designated Agency is applicable, unless checked below. Broker designates the Licensee(s) stated above to exclusively represent the interests of Tenant. If Licensee is also the Landlord's Agent, then Licensee is a DUAL AGENT.

☐ **Designated Agency is not applicable.**

5. BROKER'S SERVICES TO OTHERS

(A) Broker may not take action that is inconsistent with Tenant's interests. However, Broker may provide services to a landlord for which Broker may accept a fee. Such services may include, but are not limited to, listing property for rent; representing the Landlord as Landlord Agent; document preparation; ordering certifications required for rental; financial services; ordering insurance, construction, repair, or inspection services. Providing such services is not in itself a breach of Broker's fiduciary duty to Tenant.

(B) Broker/Licensee may show the same properties to other tenants and may represent those tenants in attempts to rent the same property that Tenant wishes to rent. Broker does not breach a duty to Tenant by showing a property Tenant is interested in to other prospective tenants.

(C) It is a conflict of interest when Broker or Licensee has a financial or personal interest in the property and/or cannot put Tenant's interests before any other. If Broker, or any of Broker's licensees, has a conflict of interest, Broker will notify Tenant in a timely manner.

6. ENTIRE CONTRACT

This Contract is the entire agreement between Broker and Tenant. Any verbal or written agreements that were made before are not a part of this Contract. All changes to this Contract must be in writing and signed by Broker and Tenant.

7. TRANSFER OF THIS CONTRACT

(A) Tenant agrees that Broker may transfer this Contract to another broker when Broker stops doing business, Broker forms a new real estate business, OR Broker joins his business with another.

(B) Broker will notify Tenant immediately in writing if Broker transfers this Contract to another broker. Tenant will follow all requirements of this Contract with the new broker.

8. CONFIDENTIALITY

Unless permitted by Tenant or required by law, Broker will not knowingly reveal or use any confidential information of Tenant. Tenant understands that landlords or landlords' representatives might not treat the existence, terms or conditions of any offer to rent as confidential unless there is a confidentiality agreement between Tenant and the landlord. This Paragraph will survive the termination or expiration of this Contract.

9. EXPERTISE OF REAL ESTATE AGENTS

Pennsylvania real estate agents are required to be licensed by the Commonwealth of Pennsylvania and are obligated to disclose adverse factors about a property that are reasonably apparent to someone with expertise in the marketing of real property.

(A) Tenant is advised that information regarding properties considered for rental by Tenant has been provided by a landlord or/or a landlord's broker. Unless otherwise noted, Broker has not verified the accuracy of this information, and Buyer is advised to investigate its accuracy. If Tenant wants information regarding specific conditions or components of a property which are outside Broker's or Licensee's area of expertise, Tenant is encouraged to seek the advice of an appropriate professional.

(B) If Tenant wants financial, legal, or any other advice, Tenant is encouraged to seek the services of an accountant, lawyer, or other appropriate professional.

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10. CIVIL RIGHTS ACTS

Federal and state laws make it illegal for a landlord, broker, or anyone to use RACE, COLOR, RELIGION or RELIGIOUS CREED, SEX, DISABILITY (physical or mental), FAMILIAL STATUS (children under 18 years of age), AGE (40 or older), NATIONAL ORIGIN, USE OR HANDLING/TRAINING OF SUPPORT OR GUIDE ANIMALS, or the FACT OF RELATIONSHIP OR ASSOCIATION TO AN INDIVIDUAL KNOWN TO HAVE A DISABILITY as reasons for refusing to sell, show, or rent properties, loan money, or set deposit amounts, or as reasons for any decision relating to the sale or rental of property.

11. NOTICE REGARDING CONVICTED SEX OFFENDERS (MEGAN'S LAW)

The Pennsylvania General Assembly has passed legislation (often referred to as "Megan's Law," 42 Pa.C.S. §9791 et seq.) providing for community notification of certain convicted sex offenders. Tenants are encouraged to contact the municipal police department or the Pennsylvania State Police for information relating to the presence of sex offenders near a particular property, or to check the information on the Pennsylvania State Police Web site at www.pameganslaw.state.pa.us.

12. RECORDINGS ON THE PROPERTY

(A) Any person who intentionally intercepts oral communications by electronic or other means without the consent of all parties is guilty of a felony under Pennyslvania law. Tenants should not make recordings on the property that capture the oral statements of other persons without having the full consent of all persons who are parties to the communication.

(B) Tenant should be aware that a landlord's property may contain smart home technologies or devices, which may record or allow for remote monitoring of the landlord's property, including broadcasting or recording video and audio. Tenant should be aware that any discussions, including discussions of negotiation strategies, held on the property may not be confidential.

(C) **Tenant hereby releases all Brokers, their LICENSEES, employees and any OFFICER or PARTNER of any one of them, and any PERSON, FIRM, or CORPORATION who may be liable through them, from any claims, lawsuits and actions which may arise from any audio or video recordings occurring in or around any property considered for rent by Tenant.**

13. RECOVERY FUND

Pennsylvania has a Real Estate Recovery Fund (the Fund) to repay any person who has received a final court ruling (civil judgment) against a Pennsylvania real estate licensee because of fraud, misrepresentation, or deceit in a real estate transaction. The Fund repays persons who have not been able to collect the judgment after trying all lawful ways to do so. For complete details about the Fund, call (717)783-3658.

14. SPECIAL CLAUSES

(A) The following are part of this Contract if checked:

☐ Single Agency Addendum (PAR Form SA)

☐ _____

(B) Additional Terms:

Tenant has read and received the Consumer Notice as adopted by the State Real Estate Commission at 49 Pa. Code §35.336.

Tenant has read the entire Contract before signing. Tenant must sign this Contract.

Return of this Contract, and any addenda and amendments, including return by electronic transmission, bearing the signatures of all parties, constitutes acceptance by the parties.

This Contract may be executed in one or more counterparts, each of which shall be deemed to be an original and which counterparts together shall constitute one and the same Agreement of the Parties.

NOTICE BEFORE SIGNING: IF BUYER HAS LEGAL QUESTIONS, BUYER IS ADVISED TO CONSULT A PENNSYLVANIA REAL ESTATE ATTORNEY.

TENANT _____ **DATE** _____

TENANT _____ **DATE** _____

TENANT _____ **DATE** _____

BROKER (COMPANY) _____

ACCEPTED ON BEHALF OF BROKER BY _____ **DATE** _____

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